

TENTATIVE RULING

Case: **HerbalShotz LLC et al. v. Vaidya et al.**
Case No. CV2025-3516

Hearing Date: **June 18, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff HerbalShotz LLC's unopposed motion to compel compliance with subpoena for production of business records to nonparty Arman Estates, LLC is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: Surebuilt Construction, Inc. v. Thoele
Case No. CV2025-1723

Hearing Date: June 18, 2026 **Department Thirteen** **9:00 a.m.**

The Court, in its discretion, considers cross-complainants Nick Thoele and Katherine Marin's untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Cross-defendants Surebuilt Construction, Inc. and Mario F. Gonzalez's demurrer to the entire cross-complaint as to cross-defendant Mario F. Gonzalez is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not allege sufficient facts to maintain the asserted causes of action against cross-defendant Mario F. Gonzalez. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504; Cross-complaint, ¶¶ 2-4, 9-11, 15-16, & 37-40.)

Cross-defendants' demurrer as to the second cause of action (negligence) in the cross-complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants concede that the demurrer should be sustained as to this cause of action. (Opposition, p. 3.)

Cross-defendants' demurrer as to the third cause of action (cancellation of instrument) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (Civ. Code, § 3412; Cross-complaint, ¶¶ 14-16 & 26-31.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Cross-defendants' demurrer as to the fourth cause of action (declaratory relief) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623-1624; Cross-complaint, ¶¶ 33-35.)

Cross-defendants' demurrer as to the fifth cause of action (intentional misrepresentation) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 & 645; Cross-complaint, ¶¶ 8-10, 14-16, & 36-43.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury, supra*, 14 Cal.App.4th at p. 616.)

Cross-defendants' motion to strike is **DENIED**. (Civ. Code, §§ 435, 436.) As to their request to strike punitive damages from cross-complainant's prayer, cross-defendants have failed to show that the cross-complaint does not support a request for punitive damages, given that the Court is overruling their demurrer as to the fifth cause of action (intentional misrepresentation). (Civ. Code, § 3294; Cross-complaint, ¶¶ 36-43.) As to their request to strike attorney's fees and other